

HOUSE No. 3567

The Commonwealth of Massachusetts

PRESENTED BY:

Aaron L. Saunders

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to energy generation payments.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>1/16/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>3/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>11/6/2025</i>

HOUSE No. 3567

By Representative Saunders of Belchertown, a petition (accompanied by bill, House, No. 3567) of Aaron L. Saunders relative to energy generation payments. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to energy generation payments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Section 139 of Chapter 164 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the words “applicable rate” the following:-

3 “(3) A distribution company shall provide payment to a customer for a credit under
4 Section 139(a)(1) of this Chapter provided that such credit has been carried forward for six
5 months or more. For the purpose of determining the age of a credit, a distribution company
6 shall apply any applicable costs against the most recent credit issued by the distribution
7 company. A distribution company customer eligible for payment under this section may opt to
8 defer payment.

9 (4) A distribution company shall provide payment to a customer for any outstanding
10 credit under Section 139(a)(1) of this Chapter within 30 days of the customer closing the account
11 with the distribution company.

(5) Payments received by a distribution company customer pursuant to Section 139(a)(3) and Section 139(a)(4) of this Chapter shall not be considered to be a credit, rebate, environmental attribute, renewable energy credit, or other payment or offset that may be construed to be attributable to a renewable energy system.

Section 2. The department shall promulgate regulations pursuant to this subsection including, but not limited to, a schedule for payments at least once annually; method of payment including the option for a distribution company customer to receive an electronic transfer of funds; notice to a distribution company customer of payment eligibility; and process for deferral of payments.”